

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Team # 2	CCRB Case #: 201409620	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 08/29/2014 5:00 PM	Location of Incident: Eastern Parkway and Classon Avenue	18 Mo. SOL 2/29/2016	Precinct: 77
Date/Time CV Reported Thu, 09/18/2014 3:26 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 09/18/2014 3:27 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Anatoli Eltsov	20935	950377	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Anatoli Eltsov	Force: PO Anatoli Eltsov pointed his gun at § 87(2)(b)	A . Exonerated
B . POM Anatoli Eltsov	Discourtesy: PO Anatoli Eltsov spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Anatoli Eltsov	Abuse: PO Anatoli Eltsov searched the car in which § 87(2)(b) was an occupant.	C . Exonerated

Case Summary

§ 87(2)(b) filed this complaint on September 18, 2014 via the on-line website (Encl. [3-A]).

On August 29, 2014 at 5 p.m., § 87(2)(b) was driving west on Eastern Parkway in Brooklyn when he was pulled over by PO Anatoli Eltsov. The following allegations resulted:

- **Allegation A—Force: PO Anatoli Eltsov pointed his gun at § 87(2)(b)**
- **Allegation C—Abuse of Authority: PO Anatoli Eltsov searched the car in which § 87(2)(b) was an occupant.**
§ 87(2)(g)
§ 87(2)(g). It is therefore recommended that Allegations A and C be *exonerated*.
- **Allegation B—Discourtesy: PO Anatoli Eltsov spoke discourteously to § 87(2)(b)**
§ 87(2)(g)
§ 87(2)(g). It is therefore recommended that Allegation B be *unsubstantiated*.

§ 87(2)(b) rejected mediation.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a white man who § 87(2)(b), with brown hair and hazel eyes. He was § 87(2)(b) at the time of the incident.
- § 87(2)(b)

CCRB Statement

§ 87(2)(b) provided a phone statement on September 29, 2014 (encl. [4-A]), and was interviewed at the CCRB on October 27, 2014 (encl. [4-F]). § 87(2)(g)

At 5:00 p.m. on August 29, 2014, § 87(2)(b) was driving on Eastern Parkway near its intersection with Classon Avenue in his forest green Toyota Siena minivan. A marked RMP containing one uniformed officer, identified as PO Anatoli Eltsov, followed him. § 87(2)(b) looked into his rear view mirror to ascertain whether PO Eltsov was motioning him to pull over. § 87(2)(b) pointed at himself, but PO Eltsov made a gesture with his hand that indicated that § 87(2)(b) should keep driving. When PO Eltsov kept following § 87(2)(b) § 87(2)(b) pulled over next to the Brooklyn Museum.

PO Eltsov exited his vehicle and walked to § 87(2)(b)'s van. When he reached § 87(2)(b)'s van, PO Eltsov drew his gun, pointed it at § 87(2)(b)'s face, and said "Open the fucking back door." § 87(2)(b) responded by raising his hands in the air and pushed a button to open the back door of the van. PO Eltsov looked inside of the van, but did not enter. He

then holstered his gun and informed § 87(2)(b) that he was stopped for speeding. PO Eltsov issued § 87(2)(b) one summons for speeding. § 87(2)(b) pled guilty to speeding and paid the fine, since PO Eltsov had already recorded his speed with a radar gun.

NYPD Statement:

Subject Officer: PO ANATOLI ELTSOV

- *PO Eltsov is a white man who is § 87(2)(b), with brown hair and green eyes. He was § 87(2)(b) at the time of the incident.*
- *On August 29, 2014, PO Eltsov worked from 3:00 p.m. to 11:35 p.m. He was assigned to summons: automobile. He was uniformed and working alone in marked car #4034.*

Memo Book

At 4:58 p.m. PO Eltsov issued summons number § 87(2)(b) to § 87(2)(b) for speeding. He saw him in the left lane, estimated from 300 feet away that he was driving 40 mph in a lane with a speed limit of 25 miles per hour. § 87(2)(b) was traveling at 41 miles per hour (Encl. [5-A]).

CCRB Statement

PO Anatoli Eltsov was interviewed at the CCRB on November 19, 2014 [Encl. (5-G)].

At the time of this incident, § 87(2)(b) was weaving in and out of lanes. He noticed § 87(2)(b) in the left lane weaving in and out of traffic. The surrounding cars were traveling at approximately 25 miles per hour, but PO Eltsov estimated that § 87(2)(b)'s van was going 40 miles per hour. He checked the radar, and saw that the van was traveling at 41 miles per hour.

PO Eltsov turned on the lights and siren, and tried to stop § 87(2)(b) near the red light on Classon Avenue. PO Eltsov opened his door to exit the vehicle, but § 87(2)(b) drove away when the light turned green. PO Eltsov attempted to stop § 87(2)(b) a second time. He exited his vehicle at the intersection of Washington Avenue and Eastern Parkway and began to approach § 87(2)(b)'s vehicle, but § 87(2)(b) drove away a second time. PO Eltsov stopped § 87(2)(b) by pulling in front of his vehicle near the intersection of Eastern Parkway and Washington Avenue.

PO Eltsov pulled out his gun and pointed it at § 87(2)(b). PO Eltsov undertook this action because he believed that § 87(2)(b) was trying to evade police capture, and might be dangerous. He requested twice that § 87(2)(b) open his window, and asked once to see § 87(2)(b)'s hands. § 87(2)(b) complied. PO Eltsov believes that § 87(2)(b) was angry at being pulled over, but could not recall any notable statements or behaviors.

PO Eltsov could not see through the tinted windows of the back of the van, despite the full sunlight at the time. The tints on § 87(2)(b)'s windows allowed between 10 to 15 percent of light to pass through—by PO Eltsov's estimation—in violation of the New York legal minimum of 17 percent.

Consequently, PO Eltsov asked twice that § 87(2)(b) open the back door of his car. § 87(2)(b) § 87(2)(b) complied. PO Eltsov denied stating “open the fucking back door,” or otherwise using

discourteous language. PO Eltsov saw neither a person nor a dangerous item in the back of the van, so he holstered his gun and wrote a summons for speeding.

Summons for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- As of November 20, 2014, the inquiry into a Notice of Claim filed by [§ 87(2)(b)] is pending.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Subject Officer CCRB History

- PO Eltsov has been a member of the service for three years and there are no substantiated CCRB allegations against him. (encl. [2-A]).

Civilian CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. [2-B]).

Conclusion

Identification of Subject Officer(s)

PO Eltsov acknowledged interacting with [§ 87(2)(b)]

Investigative Findings and Recommendations

Allegation A—Force: PO Anatoli Eltsov pointed his gun at [§ 87(2)(b)]

It is undisputed that PO Eltsov pointed his gun at [§ 87(2)(b)]

[§ 87(2)(b)] stated that PO Eltsov followed him in his vehicle between Classon Avenue and Washington Avenue on Eastern Parkway. He did not initially understand that PO Eltsov was attempting to stop his car, but he pulled over the van when he realized that PO Eltsov had been trying to stop him for all of the time that he was following him.

PO Eltsov stated that he attempted to stop [§ 87(2)(b)] three times, and that [§ 87(2)(b)] only acceded after the third try. PO Eltsov believed that [§ 87(2)(b)]'s refusal to stop his car resulted from his intent to evade police interaction or capture. PO Eltsov also stated that [§ 87(2)(b)] drove in a reckless manner that may have endangered nearby pedestrians. PO Eltsov also feared for his own safety, because he worked alone for that tour.

Police Department policy allows officers to draw and point their firearms if they have reasonable fear for their safety. Police Department v. Gliner, OATH Index No. 955/400 (2000)[Encl. (1-A)].

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be *exonerated*.

Allegation B—Discourtesy: PO Anatoli Eltsov spoke discourteously to § 87(2)(b)

§ 87(2)(b) claimed that PO Eltsov told him to “open the fucking back door.”

PO Eltsov denied using the word “fucking” or any permutation thereof during the incident.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be *unsubstantiated*.

Allegation C—Abuse of Authority: PO Anatoli Eltsov searched the car in which § 87(2)(b)

was an occupant.

It is undisputed that PO Eltsov ordered § 87(2)(b) to open the back door of the minivan and that § 87(2)(b) obeyed this request.

As previously established, § 87(2)(b) only complied with PO Eltsov’s third request to stop, leading PO Eltsov to believe that § 87(2)(b) was trying to avoid contact with the police. Furthermore, the tints on § 87(2)(b)’s windows prevented PO Eltsov from viewing the van’s interior.

During the course of a lawful traffic stop, an officer may open the doors of a vehicle to look inside in the interest of safety, but must cease the search once the threat to safety has diminished. People v. Cross 851 N.Y.S. 2d 59 (Encl. [1-Z]).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as *exonerated*.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date